

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                                 |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------|-------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Raquel Velasquez                                               | Team:<br>Squad #12                              | CCRB Case #:<br>201510836 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 11/17/2015 8:50 PM, Wednesday, 11/18/2015 12:00 AM | Location of Incident:<br>In front of § 87(2)(b) | 18 Mo. SOL<br>5/17/2017   | Precinct:<br>105                                                                                                                                                                                                      |
| Date/Time CV Reported<br>Mon, 12/28/2015 2:47 PM                                | CV Reported At:<br>CCRB                         | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 12/28/2015 2:47 PM                                                                                                                                                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. An officer             |        |        | Unknown |
| 2. POF Michelle Maldonado | 19333  | 953040 | PBQS SU |
| 3. POM Brice Sheppard     | 07169  | 952234 | PBQS SU |
| 4. POM Charlie Harvell    | 09944  | 950568 | PBQS SU |

| Officer(s)                 | Allegation                                                                             | Investigator Recommendation |
|----------------------------|----------------------------------------------------------------------------------------|-----------------------------|
| A . POM Charlie Harvell    | Abuse: PO Charlie Harvell stopped § 87(2)(b) and § 87(2)(b)                            | A . Exonerated              |
| B . POM Brice Sheppard     | Abuse: PO Brice Sheppard stopped § 87(2)(b) and § 87(2)(b)                             | B . Exonerated              |
| C . POF Michelle Maldonado | Abuse: PO Michelle Maldonado stopped § 87(2)(b) and § 87(2)(b)                         | C . Exonerated              |
| D . POM Charlie Harvell    | Abuse: PO Charlie Harvell frisked § 87(2)(b)                                           | D . Substantiated           |
| E . POF Michelle Maldonado | Force: PO Michelle Maldonado tightly handcuffed § 87(2)(b)                             | E . Unsubstantiated         |
| F . POM Charlie Harvell    | Abuse: PO Charlie Harvell searched the vehicle in which § 87(2)(b) was an occupant.    | F . Unsubstantiated         |
| G . POF Michelle Maldonado | Abuse: PO Michelle Maldonado searched the vehicle in which § 87(2)(b) was an occupant. | G . Unsubstantiated         |
| H . POM Brice Sheppard     | Abuse: PO Brice Sheppard searched the vehicle in which § 87(2)(b) was an occupant.     | H . Unsubstantiated         |
| I . POM Brice Sheppard     | Abuse: PO Brice Sheppard threatened to arrest § 87(2)(b)                               | I . Exonerated              |
| J . POM Charlie Harvell    | Abuse: PO Charlie Harvell threatened to arrest § 87(2)(b)                              | J . Exonerated              |
| K . An officer             | Abuse: An officer threatened to arrest § 87(2)(b)                                      | K . Exonerated              |
| L . POF Michelle Maldonado | Abuse: PO Michelle Maldonado searched § 87(2)(b)'s recording device.                   | L . Unsubstantiated         |
| M . POF Michelle Maldonado | Abuse: PO Michelle Maldonado deleted information on § 87(2)(b)'s electronic device.    | M . Unsubstantiated         |

| Officer(s)                 | Allegation                                                                           | Investigator Recommendation |
|----------------------------|--------------------------------------------------------------------------------------|-----------------------------|
| N . POF Michelle Maldonado | Abuse: PO Michelle Maldonado interfered with § 87(2)(b)'s use of a recording device. | N . Substantiated           |

### Case Summary

On November 17, 2015, at approximately 8:50 p.m., PO Charlie Harvell, PO Brice Sheppard, and, PO Michelle Maldonado, from Patrol Borough Queens South Specialized Unit, stopped § 87(2)(b) and § 87(2)(b) who were in their car parked in front of § 87(2)(b) in Queens (**Allegations A, B, and C**). § 87(2)(b) and § 87(2)(b)'s mother and sister, § 87(2)(b) and § 87(2)(b) heard the commotion, came outside, and recorded the incident. PO Harvell frisked § 87(2)(b) (**Allegation D**). PO Harvell, PO Maldonado, and PO Sheppard searched § 87(2)(b)'s car (**Allegations F, G, and H**). Additional officers arrived at the scene. PO Sheppard, PO Harvell, and an unidentified officer threatened to arrest § 87(2)(b) (**Allegations I, J, and K**). PO Maldonado allegedly tightened § 87(2)(b)'s handcuffs, searched § 87(2)(b)'s cellphone, and deleted a video recording (**Allegations E, L, and M**). PO Maldonado also interfered with § 87(2)(b)'s ability to video record the incident (**Allegation N**). No arrests or summons resulted from this incident.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) provided video footage of this incident recorded from their cellphones. Below is a compilation of the relevant footage (**Board Review 1 and Board Review 2**).



201510836\_20160603\_1222\_DM.mp4

### Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) rejected mediation.
- A Notice of Claim regarding this incident was filed by § 87(2)(b) on § 87(2)(b), claiming deprivation of civil rights, psychological and physical distress, pain and suffering, damage to property, fear, deprivation of liberty, economic loss. Compensation has not yet been determined. A 50h hearing was scheduled for § 87(2)(b) (**Board Review 3**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (**Board Review 5**).
- PO Michelle Maldonado has been a member of the service for three years and there are no substantiated CCRB allegations against her.
- PO Brice Sheppard has been a member of the service for four years and there are no substantiated CCRB allegations against him.
- PO Charlie Harvell has been a member of the service for four years and there are no substantiated CCRB allegations against him.

## Findings and Recommendations

### Allegations not Pled

- § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]

### Explanation of Subject Officer Identification

§ 87(2)(g) [REDACTED]

§ 87(2)(b) [REDACTED] alleged that a third officer, who was dressed in uniform and was described as a 42-year-old white male who stands 6'2" tall, and had blonde hair, also threatened to arrest him. § 87(2)(b) [REDACTED] provided a general description of the subject officer, there was no event for this incident, and PO Sheppard, PO Harvell, and PO Maldonado denied that additional officers arrived at the scene. The video footage shows additional officers at the scene, but the quality is too far to identify any officers. § 87(2)(g) [REDACTED]  
[REDACTED]

**Allegation A: Abuse of Authority- PO Charlie Harvell stopped § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]**  
**Allegation B: Abuse of Authority- PO Brice Sheppard stopped § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]**  
**Allegation C: Abuse of Authority- PO Michelle Maldonado stopped § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]**

It is undisputed that PO Sheppard, PO Maldonado, and PO Harvell stopped § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] while their vehicle was parked in front of their house.

§ 87(2)(b) [REDACTED] stated that their vehicle was partially blocking the driveway (**Board Review 7**). The video evidence placed side-by-side with a Google StreetView image confirmed that their vehicle was partially blocking their driveway (**Board Review 20**).

§ 87(2)(b) [REDACTED] denied that their vehicle was blocking the driveway (**Board Review 6**).

The officers provided several reasons for stopping § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] (**Board Review 9, Board Review 10, and Board Review 11**). In the video, PO Maldonado can be heard telling the individuals that the only reason they were stopping them was that they were blocking the driveway (**Board Review 1 and Board Review 2**).

NYS VTL Article 32 section 1201 states that it is a violation to block a driveway (**Board Review 19**).

§ 87(2)(g) [REDACTED]  
[REDACTED] It is therefore recommended that **Allegations A, B, and C** be **exonerated**.

**Allegation D: Abuse of Authority- PO Charlie Harvell frisked § 87(2)(b) [REDACTED]**  
It is undisputed that PO Harvell frisked § 87(2)(b) [REDACTED]

As the officers approached, § 87(2)(b) grabbed his cellphone and began recording the incident. § 87(2)(b) and § 87(2)(b) denied making any other movements. § 87(2)(b) and § 87(2)(b) questioned why the officers were stopping them when PO Harvell opened the passenger door and either PO Maldonado or PO Sheppard opened the driver side door. PO Harvell pulled § 87(2)(b) out of the car and patted his shoulders, arms, and his inner thighs near his genitals (**Board Review 6 and Board Review 7**).

The video footage shows § 87(2)(b) yelling at the officers and cursing at them regarding the stop. The video begins after the officers have already approached and it ends before the frisk allegedly occurs.

PO Sheppard, PO Harvell, and PO Maldonado stated that they repeatedly told § 87(2)(b) and § 87(2)(b) to roll down their windows. § 87(2)(b) and § 87(2)(b) did not comply, but they reached in between the seats and center console. These actions made the officers fear for their safety. The officers then told § 87(2)(b) and § 87(2)(b) to exit the car. § 87(2)(b) and § 87(2)(b) refused to do so at first, but then complied, after several commands (**Board Review 9, Board Review 10, and Board Review 11**).

PO Harvell stated that he removed § 87(2)(b) from the car, at which point, § 87(2)(b) pushed his waist against the car. PO Harvell stated that, in his experience, this action indicates that a person may be concealing something in his “waist or testicle area.” PO Harvell did not observe any bulges on § 87(2)(b) but frisked his waistband, one of his legs, and possibly his chest. PO Harvell frisked these areas because, depending on the size of the weapon, he could have been carrying a gun in his underwear. PO Harvell did not feel any hard objects on § 87(2)(b) (Board Review 10).

To frisk a person, an officer must have reasonable suspicion that the person stopped is armed and dangerous. *People v. DeBour*, 40 N.Y.2d 210 (1976) (**Board Review 12**). Such suspicions should be supported by observations or factors, such as a noticeable bulge. *People v. Isaac*, 107 A.D.3d 1055 (2013). *People v. Rodriguez* 18 Misc. 3d 1124A (encl. A45-49) (**Board Review 13**) A frisk must be limited in scope to the areas where the officer suspects a weapon may be located (See also *People v. Hill* 262 A.d.2d 870 (encl. A50-51) (**Board Review 18**).

§ 87(2)(g)  
Therefore, it is recommended that **Allegation D** be closed as **Substantiated**.

**Allegation E: Force- PO Michelle Maldonado tightly handcuffed § 87(2)(b)**  
§ 87(2)(b) stated that after being frisked by PO Harvell, PO Maldonado approached and handcuffed him. § 87(2)(b) complained that the handcuffs were too tight and PO Maldonado then squeezed one of the handcuffs tighter (**Board Review 7**). § 87(2)(b) stated that PO Harvell

handcuffed § 87(2)(b) while inside the car and corroborated that PO Maldonado tightened the handcuffs (**Board Review 6**).

The video footage does not capture this allegation.

PO Maldonado did not recall who handcuffed § 87(2)(b) but speculated that she must have assisted in the process. PO Maldonado denied tightening § 87(2)(b)'s handcuffs (**Board Review 11**). PO Harvell and PO Sheppard also denied tightening or seeing any officer tightening § 87(2)(b)'s handcuffs (**Board Review 9 and Board Review 10**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Unsubstantiated**.

**Allegation F: Abuse of Authority- PO Charlie Harvell searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation G: Abuse of Authority- PO Michelle Maldonado searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation H: Abuse of Authority- PO Brice Sheppard searched the vehicle in which § 87(2)(b) was an occupant.**

It is undisputed that PO Harvell and PO Maldonado searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) immediately exited his car after § 87(2)(b) was removed and yelled at the officers, asking them whether he told them they could open the door and to step the “fuck” back. § 87(2)(b) and § 87(2)(b) were escorted to the back of the car when the officers searched the car (**Board Review 6 and Board Review 7**). PO Harvell entered the car through the driver and passenger side doors and searched the center consoles, glove compartment, underneath the seats, moved the seats, leaned into the back and searched the back pouches of the car seats, and dumped a gym bag located on the back seat. PO Harvell also opened the gas cap and looked inside. PO Maldonado also repeatedly entered § 87(2)(b)'s car and searched the same areas, except the gas cap. § 87(2)(b) and § 87(2)(b) were placed in the unmarked car when PO Sheppard entered § 87(2)(b)'s car and leaned over the driver seat into the back of the car. Additional officers arrived at the scene and stood at the rear of § 87(2)(b)'s car when the trunk was opened. § 87(2)(b) could not see what the officers did, but later saw that items in the trunk were moved around. § 87(2)(b) did not see which officers searched the trunk of his car. § 87(2)(b) did not consent to the officers searching his car (**Board Review 6**). § 87(2)(b) corroborated that PO Harvell, PO Sheppard, and PO Maldonado leaned into § 87(2)(b)'s car and searched inside the car. After searching the car, PO Maldonado exited the car with credit cards and stated that they were fake (**Board Review 7**).

The video recording shows PO Harvell shining a flashlight into § 87(2)(b)'s car through the passenger side. The camera angle moves away, but § 87(2)(b) is heard stating, “I do not allow

you to get in my car.” Later in the video, PO Harvell’s torso is seen exiting the passenger side of § 87(2)(b) s car and then leaning his right hand into the car and touching the right side of the passenger seat. The video recording also shows PO Maldonado lean down while standing at the driver side, but her action inside the vehicle was obstructed. The video does not capture PO Maldonado inside the car, however, approximately one minute and seventeen seconds later, PO Maldonado comes to the rear of the car with an unknown object in her right hand and says, “I would suggest that she stops recording, okay? Because I have this right here in my hand. Okay. And you know what this is. You know what this is.” **(Board Review 1 and Board Review 2).** None of the video evidence shows PO Sheppard entering the vehicle.

PO Sheppard, PO Harvell, and PO Maldonado stated that they repeatedly told § 87(2)(b) and § 87(2)(b) to roll down their windows. § 87(2)(b) and § 87(2)(b) did not comply, but they reached in between the seats and center console. These actions made the officers fear for their safety. The officers then told § 87(2)(b) and § 87(2)(b) to exit the car. § 87(2)(b) and § 87(2)(b) refused to do so at first, but then complied, after several commands **(Board Review 9, Board Review 10, and Board Review 11).**

PO Harvell acknowledged entering the vehicle and searching the door panel, passenger seat, and the floor boards. He denied a more extensive search and he denied seeing any other officer in the vehicle. PO Harvell searched the vehicle because § 87(2)(b) and § 87(2)(b) were reaching around the vehicle and that they refused to show their hands while they were in a high crime area. PO Harvell believed that § 87(2)(b) and § 87(2)(b) may have had a weapon. PO Harvell also stated that he smelled marijuana smoke when he was driving by the vehicle. He stated that marijuana was found in the vehicle, but it was of such a small quantity and it was scattered on the window seal. PO Harvell believed that the car may have had a weapon because § 87(2)(b) and § 87(2)(b) refused to show their hands and because they were in a high crime area. PO Harvell looked in the door panel compartment, on and under the passenger front seat, and on the floor beneath the seat. PO Harvell denied searching or seeing any officer searching any other part of the car. While PO Harvell did not see PO Sheppard or PO Maldonado search the car, he stated that they probably did because they conduct car searches when there is marijuana and the possibility of weapons. No weapons were found in the car **(Board Review 10).**

PO Maldonado stated that it is standard for them to search any areas of a car open to plain view during a car stop to ensure there is nothing dangerous inside. PO Maldonado stated that an officer may have reached inside § 87(2)(b) s car, but she could not recall which officer did so and denied having done so herself. PO Maldonado could not recall if she or any of the officers searched the alleged areas of the car **(Board Review 11).**

PO Sheppard denied entering the vehicle and none of the other officers placed him inside of the vehicle **(Board Review 9).**

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(g) It is therefore recommended that **Allegation F and G** be **unsubstantiated**.

§ 87(2)(g) It is therefore recommended that **Allegation H** be **unsubstantiated**.

**Allegation I: Abuse of Authority- PO Brice Sheppard threatened to arrest** § 87(2)(b)

**Allegation J: Abuse of Authority- PO Charlie Harvell threatened to arrest** § 87(2)(b)

**Allegation K: Abuse of Authority- An officer threatened to arrest** § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that PO Sheppard threatened to take him to Queens Central Bookings if he continued to “run” his mouth and did not follow procedure. Also, when § 87(2)(b) stated that he was going to press charges against the officers, an unidentified officer said that the officers could still take him to Queens Central Bookings. § 87(2)(b) and § 87(2)(b) did not provide their identifications to the officers at any point during the incident (**Board Review 6 and Board Review 7**).

The video footage does not capture PO Sheppard or the unidentified officer threatening to arrest § 87(2)(b). However, the video footage does show PO Harvell tell § 87(2)(b) “I’ll take you in for resisting arrest” and “Do you want to go home or do you want to go to one of our precincts?” (**Board Review 1 and Board Review 2**)



2016-06-08\_12-45-46.mp4

PO Sheppard admitted telling § 87(2)(b) that he could be arrested for obstructing government administration and disorderly conduct (**Board Review 9**). PO Harvell stated that he told § 87(2)(b) that § 87(2)(b), § 87(2)(b), and § 87(2)(b) could be arrested for obstructing governmental administration and resisting arrest (**Board Review 10**). PO Maldonado denied threatening or hearing any officer threatening to arrest § 87(2)(b) (**Board Review 11**).

According to Penal Law article 195.05, a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act, or by means of interfering, whether or not physical force is involved (**Board Review 15**). In People v. Harrison, the court held that once a motor vehicle has been lawfully detained for a traffic violation, officers may order the driver to get out of the vehicle without violating the Fourth Amendment's proscription of unreasonable searches and seizures. People v. Harrison, 57 N.Y.2d 470, 477 (1982) (**Board Review 17**).

§ 87(2)(g)



§ 87(2)(g)

It is therefore recommended that **Allegations I, J, and K** be closed as **Exonerated**.

**Allegation L: Abuse of Authority- PO Michelle Maldonado searched § 87(2)(b)'s recording device.**

**Allegation M: Abuse of Authority- PO Michelle Maldonado deleted information on § 87(2)(b)'s electronic device.**

§ 87(2)(b) stated that as soon as he exited his car, PO Maldonado grabbed his cellphone from his hand and swiped the cellphone screen with her fingers. The cellphone did not have a password enabled so PO Maldonado had access to its contents. At the end of the incident, PO Maldonado returned the cellphone to § 87(2)(b). § 87(2)(b) checked his cellphone and found that the video he had recorded was deleted (**Board Review 6**). § 87(2)(b) stated that PO Maldonado retrieved § 87(2)(b)'s cellphone and swiped on the screen as if she was using it or doing something on it (**Board Review 8**).

The video footage does not capture these allegations.

PO Maldonado, PO Sheppard, and PO Harvell denied searching or seeing any officer searching a cellphone or deleting any video recordings in a cellphone (**Board Review 9, Board Review 10, and Board Review 11**).

§ 87(2)(g)

Therefore, it is recommended that **Allegations L and M** be closed as **Unsubstantiated**.

**Allegation N: Abuse of Authority- PO Michelle Maldonado interfered with § 87(2)(b)'s use of a recording device.**

§ 87(2)(b) and § 87(2)(b) stated that PO Maldonado instructed § 87(2)(b) several times to stop recording the incident (**Board Review 6, Board Review 7, and Board Review 8**).

Video evidence shows PO Maldonado tell § 87(2)(b) "I would suggest that she stops recording, okay?" § 87(2)(b) who was standing several feet away, ended the recording thereafter (**Board Review 1 and Board Review 2**).



2016-05-18\_16-23-50.mp4

PO Maldonado did not recall ever interfering with anyone's ability to film the incident, telling anyone that they were not allowed to record or telling anyone to stop recording. PO Maldonado was shown the abovementioned video recording and she identified her voice as the officer who

told § 87(2)(b) to stop recording, but she could not recall the context of the conversation or why she said that (**Board Review 11**).

According to Finest Message #9881632, officers are not permitted to interfere with a person's use of a recording device during a police encounter unless said person is interfering with police operations. Ordering someone to cease recording constitutes police interference (**Board Review 14**). Patrol Guide Procedure 208-03 states that "taking photographs, videotapes, or tape recordings" does not constitute probable cause for arrest or detention of an onlooker unless the safety of officers or other persons is directly endangered or the officers reasonably believes they are endangered or the law is otherwise violated (**Board Review 16**).

§ 87(2)(g)

it is recommended that **Allegation N** be closed as **Substantiated**.

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Squad: 12

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date